

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

Samsung Electronics America, Inc.

v.

COSCO Shipping Lines Co. Ltd.

v.

**Samsung Electronics Co., Ltd., Samsung Electronics Logitech Co., Ltd., and Samsung SDS
Global SCL Asia Pacific PTE LTD**

**COSCO'S RESPONSE TO THIRD-PARTY
RESPONDENTS' MOTION TO DISMISS**

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Third-Party Complainant COSCO Shipping Lines Co., Ltd. (“Third-Party Complainant” or “COSCO”), by its undersigned attorneys, submits this response to the motion to dismiss the Third-Party Complaint (“TPC”) (the “Motion”) (Doc. 44) of Samsung Electronics Co., Ltd. (“SEC”), Samsung SDS Global SCL Asia Pacific PTE LTD (“SDS”), and Samsung Electronics Logitech Company, Ltd. (“Logitech”) (collectively, “Third-Party Respondents”).

INTRODUCTION

On May 12, 2020, COSCO filed its Verified Third-Party Complaint against Third-Party Respondents for using an unjust and unfair device or mean to obtain or attempt to obtain ocean transportation at less than applicable rates and terms in violation of 46 U.S.C. §41102(a)(a)(1).¹ COSCO’s counsel sent a copy of the TPC to counsel for Third-Party Respondents the same day, who acknowledged receipt. *See* email dated May 12, 2025 from J. Hohenstein, attached hereto as **Exhibit A**. As provided in 46 C.F.R. §502.113, the Commission served SEC, Logitech, and SDS at their respective principal places of business in the Republic of Korea (Logitech) and Singapore (SDS) (Hohenstein Decl. at ¶¶ 3-4). The Commission sought to serve SEC in Korea, but that service was returned as “undeliverable or not accepted for delivery on May 16....” (Doc. 39). SEC is the parent of Complainant Samsung Electronics America, Inc., Samsung Electronics Co., Ltd. Interim Business Report, https://images.samsung.com/is/content/samsung/assets/global/ir/docs/2025_1Q_Interim_Report.pdf at 47 and Complainant, and on information and belief the Third-Party Respondents are ultimately commonly owned.

¹ Third-Party Respondents say that the exact names of these entities are Samsung Electronics Co., Ltd. (SEC), Samsung SDS Asia Pacific Pte Ltd. (SDS), and Samsung Electronics Logitech Co., Ltd. (Logitech). *See* Decl. of James Hohenstein (Doc. 45) at ¶ 1.

Despite their Motion, Third-Party Respondents concede that “initiation of the service of process...appears to have been made in accordance with FMC procedures,” and that “service by the Secretary appears to have been attempted in accordance with Rule 113, 46 C.F.R. § 502.113(b)....” Mot. at 1-2. Their Motion rests on the contention that Third-Party Respondents are “non-regulated foreign entities,” and that service may only be accomplished under the Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters, Nov. 15, 1965, T.I.A.S. No. 6638, 20 U.S.T. 361 (the “Convention”), and subject to the Convention’s Article 10 objections of Korea and Singapore to service by postal channels, and to Korea’s objection that documents be translated to Korean under the Convention’s Article 5. Mot. at 7.

The motion to dismiss cannot stand. The Third-Party Respondents are regulated by the FMC and service under the FMC’s regulations was entirely appropriate. The Third-Party Respondents’ contention that service under the Convention is “mandatory” is belied by the numerous cases permitting service of process by other means on parties who are in countries that are parties to the Convention. Furthermore, even if service was insufficient, there is no basis for dismissal. The Third-Party Respondents may be served by other means and COSCO has been diligent. It has initiated service under the Convention and is moving the Presiding Officer to permit COSCO to serve U.S. counsel for the Third-Party Respondents under Fed. R. Civ. P. 4(f)(3).

ARGUMENT

I. Third-Party Respondents are shippers regulated by the FMC and service under the Commission’s regulations was appropriate.

Third-Party Respondents recognize that service in accordance with the Commission’s Rules of Practice and Procedure is appropriate for regulated entities such as ocean common

carriers, but assert that the Rules do not apply to them because they are not regulated by the FMC. The Shipping Act, the FMC's regulations, and FMC practice are all to the contrary. *See e.g., Marine Transp. Logistics, Inc. v. CMA-CGM, S.A.*, Docket No. 22-23, (FMC 2023) (French Respondent “voluntarily chose[] to conduct business in American ports and is regulated by the Federal Maritime Commission.”). Each of the Third-Party Respondents is indeed a “shipper,” as that term is specifically defined by the Shipping Act and FMC regulations. 46 U.S.C. § 40102(23); 46 C.F.R. 530.3(r). Absent being a Shipping Act “shipper,” none of the Third-Party Respondents could lawfully enter into a service contract with COSCO, which allows shippers to obtain rates and terms better than they could receive under a carrier's tariff. Indeed, the shipper party to a service contract is required to certify the “shipper status” of both it and any affiliates entitled to receive service under the service contracts. 46 C.F.R. 530.6(a) thus specifically states:

“The shipper contract party shall sign and certify on the signature page of the service contract its shipper status (e.g., owner of the cargo, shippers' association, NVOCC, or specified other designation), and the status of every affiliate of such contract party . . . entitled to receive service under the contract.”

Such service contracts must be filed with the FMC, which exercises regulatory authority over them, including such matters as required terms of service contracts, certainty of terms, failure of either party to meet requisite commitments under contracts, amendment, correction, and cancellation of service contracts, re-rating of cargo when a cancellation occurs, effective dates for service contracts and amendments, and the revocation or suspension of service contracts. 46 C.F.R. Part 530.

Shippers are regulated entities under 46 U.S.C. §41102, which prohibits a “person from knowingly and willfully, directly or indirectly, by means of false billing... or any other unjust or unfair device or means, obtain or attempt to obtain ocean transportation for property at less than

the rates or charges that would otherwise apply.” (Emphasis added). The FMC has specifically held that shippers are a particular type of “person covered by this section -- the term “any person,” as used in 46 U.S.C. § 41102(a), is fully as broad as the words “shipper, consignor, consignee, forwarder, broker, or other person.” *U.S. Lines v. Gondrand Bros.*, 7 F.M.C. 464, 471 (FMC 1962); *OC International Freight, Inc.*, Docket No. 12-01, 2014 WL 5316336 (FMC 2014). And the D.C. Circuit has specifically identified that a major intention of Congress in enacting 46 U.S.C. 41102(a) was to protect carriers against unscrupulous shippers.” *Hohenberg Bros. Co. v. FMC*, 316 F.2d 381, 384 (D.C. Cir. 1963).

Because “shippers” such as Third-Party Respondents are plainly regulated under the Shipping Act and FMC regulations, any ruling that they may not be served under the Commission’s regulations would necessarily apply to other, foreign-domiciled entities regulated by the FMC, such as ocean common carriers (almost all of which are located overseas) and foreign-based NVOCCs. Such a ruling would thus eviscerate much of the Commission’s regulatory and adjudicatory ability.

Third-Party Respondents do not and cannot deny they are shippers and thus squarely within the term “person,” and the Third-Party Complaint seeks redress for their violation of the Shipping Act. Furthermore, Congress recently confirmed the FMC’s authority over shippers, such as the Third-Party Respondents, in the Ocean Shipping Reform Act of 2022: it directed the FMC to “initiate a rulemaking further defining prohibited practices by common carriers, marine terminal operators, shippers, and ocean transportation intermediaries under section 41102(c) ...regarding the assessment of demurrage or detention charges.” (Emphasis added).

Third-Party Respondents cite no legal authority for the proposition that the FMC does not regulate them. And the cases they cite do not support their contention that service by the

Commission was insufficient. *Ghazarian v. Republic of Turkey* (Case. No. CV 19-4664-PSG (Ex), 2020 WL 3643483 at *2 (C.D. Cal. Mar. 30, 2020)) involved service of a foreign state under 28 U.S.C. §1608(a); *Touchpoint Projection Innovations LLC v. CDNetworks Co., Ltd.* (No. 2:23-CV-00233-JRG, 2024 WL 4028034 at *4 (E.D. Tex. Aug. 30, 2024)) concerned service attempted by the Texas Secretary of State and recognized that “other methods of service may be available;” and *Sharp v. Shinhan Bank Co., Ltd.* (CV 21-9197 DSF (MRWx), 2022 WL 22339345 at *3 (C.D. Cal. Apr. 1, 2022)) simply granted the plaintiff’s motion to permit service in Korea under the Convention without providing a translation of the exhibits to the complaint. None of the cases on which Third-Party Respondents rely involved service by a federal agency under its own regulations.²

More to the point is *Taotao USA, Inc. v United States Env’t Prot. Agency*, Civil Action No. 20-cv-915 (BAH), 2022 WL 969651 (D.D.C. Mar. 31, 2022), *aff’d on other issues*, 2023 WL 1484707 (D.C. Cir. Feb. 1, 2023). *Taotao* upheld the EPA’s service of process on Chinese corporations in an EPA administrative proceeding under the EPA’s regulations, notwithstanding that China was a signatory to the Convention. 2022 WL 969651 at *15.

Moreover, Third-Party Respondents’ contention that service under the Convention is “mandatory” is contrary to law. As set forth in more detail in COSCO’s Motion to Permit Alternative Service under Fed R. Civ. P. 4(f)(3), the courts have routinely authorized service on a foreign party’s U.S. counsel or other means, notwithstanding that those foreign parties are in

² Nor have Third-Party Respondents demonstrated that Korea or Singapore would apply the Convention and their objection to an administrative proceeding. *See MCS Industries Inc. v. COSCO Shipping Lines Co., Ltd.*, Docket No. 21-05, Order Affirming Initial Decision on Remand (Doc. 78) at 5 (reporting that a Swiss court refused to serve a discovery request as “outside the scope of the Hague Evidence Convention because the relevant FMC proceeding is an administrative one.”)

countries which are parties to the Convention and have imposed objections to its service provisions. *See e.g., Compañia de Inversiones Mercantiles, S.A. v. Grupo Cementos de Chihuahua S.A.B. de C.V.*, 970 F.3d 1269, 1294-1295 (10th Cir. 2020) (service on U.S. counsel for Mexican corporation was permissible notwithstanding Mexico's objection to the service methods in Article 10 of the Convention); *Dolls Kill Inc. v. Yunye Apparel Retail Ltd.*, 2:23-cv-01979-HDV-JPR, 2023 U.S. Dist. LEXIS 173483, at *2 (C.D. Cal. Aug. 16, 2023) (permitting service on Chinese Company by email); *Nexon Korea Corp. v. Ironmace Co.*, No. C23-576-MLP, 2023 WL 3599548, at *3 (W.D. Wash. May 23, 2023) (authorizing service on U.S. counsel of Korean company, notwithstanding Korea's objections to the Convention under Article 10); *In re One Apus Container Ship Incident on November 30, 2022*, 22 Md. 3028 (PAE), 2022 WL 17370122, at *3 (S.D.N.Y. Dec. 2, 2022) (authorizing service on U.S. counsel for South Korean corporation Hyundai Merchant Marine, notwithstanding the Convention); *Sec. Exch. Comm'n v. Richman*, Case No. 21-cv-01911-CRB, 2021 U.S. Dist. LEXIS 263304, at *15 (N.D. Cal. July 19, 2021) (permitting service on U.S. counsel, notwithstanding Germany's objections to Convention); *Fed. Trade Comm'n v. Repair All PC, LLC*, Case No. 1:17 CV 869, 2017 WL 2362946, at *5 (N.D. Ohio May 31, 2017) (service on U.S. counsel notwithstanding India's objection to Article 10); *Carrico v. Samsung Elecs. Co.*, Case No. 15-cv-02087-DMR, 2016 WL 2654392, at *4 (N.D. Cal. May 10, 2016) (service was not barred on Samsung Electronics Co., Ltd. employee through its attorney, notwithstanding Korea's objections to service methods in the Convention); *In re Cathode Ray Tube (CRT) Antitrust Litig.*, 27 F. Supp. 3d 1002, 1010 (N.D. Cal. 2014) (authorizing service on Chinese company notwithstanding China's objections to service provisions of the Convention).

The Third-Party Respondents' contentions that it is not regulated by the FMC and that service under the Convention is somehow required cannot stand.

II. There is no basis for dismissal, let alone a dismissal with prejudice.

Even assuming *arguendo* that the Presiding Officer finds service of process was insufficient, there is no basis for dismissal, let alone a dismissal with prejudice. Courts have routinely refused to dismiss actions due to insufficient service unless service would be futile, or the party to be served would be unduly prejudiced. *Brown-Thomas v. Hynie*, 367 F. Supp. 3d 452, 462 (D.S.C. 2019) (“it is improper to dismiss a complaint when the plaintiff can properly serve the defendant.”); *Plant Genetic Sys., N.V. v. Ciba Seeds*, 933 F. Supp. 519, 526–27 (M.D.N.C. 1996) (“Dismissal under Rule 12(b)(5) is not justified where it appears that service can be properly made”); 5B Wright & Miller Fed. Prac. & Proc. Civ. (2004) § 1353 (4th ed.) (a motion to dismiss under Rule 12(b)(5) will only be granted when the defective method of notice is “prejudicial to the defendant”); *see also Salaam v. Merlin*, No. 08-1248 (JB), 2009 WL 2230925 *1, *4 (D.N.J. July 22, 2009) (granting extension to plaintiff to serve the defendant with proper service as it did not prejudice the defendant). Third Party Respondents have not alleged that service would be futile or that they have been prejudiced, and there is no basis for dismissal.

American River Transp. Co. v. M/V Bow Lion, (No. Civ. A 03-1306, 03-1594, 03-1797, 03-1864, 03-2003, 2004 WL 764181, *1 (E.D. La. Apr. 7, 2004)), and *Castillo v. Hongjin Crown Corp.* (No. DR-08-CV-00031-AML-VRG, 2008 WL 11334092 (W.D. Tex. Oct. 27, 2008) (Garcia, Mag. J.), *report and recommendation adopted*, 2009 WL 1069624 (W.D. Tex. Sep. 16, 2009)), are inapposite. In *American River*, the third-party plaintiff attempted to serve a copy of its complaint on the third-party defendant *only* via postal channels. *See* 2004 WL 764181 at *2. And in *Castillo*, plaintiff attempted to serve the Korean defendant-corporation by serving the registered agent of a similarly-named, but unrelated, corporation with a principal place of

business in California. 2008 WL 11334092 at *1. Following the magistrate’s report and recommendation, which included steps on how to properly serve defendant under the Convention, the plaintiff did not submit any indication to the court that it attempted to serve defendant despite the passage of 300 days from the date of the case’s removal to federal court nor did it request additional time from the court to properly serve defendant. 2009 WL 10669624 at *1. By contrast, COSCO first sought to obtain service under the Commission’s rules, has initiated service of process under the Convention, and is moving for an order permitting it to serve the third-party defendants by alternative means.

Moreover, it is well established that “the timeliness of foreign service is often out of the plaintiff’s control.” *Nylok Corp. v. Fastener World Inc.*, 396 F.3d 805, 807 (7th Cir. 2005). That is precisely why Fed. R. Civ. P. 4(m) carves out an exemption for the time limit to serve a defendant in a foreign country. *See* Fed. R. Civ. P. 4(m) (“subdivision (m) does not apply to service in a foreign country under Rule 4(f)...”). Even if service of process was insufficient, the only appropriate remedy would be to allow COSCO additional time to properly serve the third-party respondents. *Vorhees v. Fischer & Krecke*, 697 F.2d 574, 576 (4th Cir. 1983) (“If the first service of process is ineffective, a motion to dismiss should not be granted, but rather the Court should treat the motion in the alternative, as one to quash the service of process and the case should be retained on the docket pending effective service.”); *Slone v. State Auto Prop. and Cas. Ins. Co.*, No. 2:19-cv-00408, 2021 WL 190938, *13 (S.D. W. Va. Jan. 19, 2021) (“Where the first attempt at service is ineffective, the appropriate remedy ... is to quash the service of process rather than dismiss the relevant claims under Rule 12(b)(5)”; *see also, e.g., Compañia de Inversiones Mercantiles, S.A.*, 970 F.3d at 1300 (upholding district court’s authorization of

alternative service after notification that prior service attempt had not been effectuated);

Samsung Elecs. Co., 2016 WL 2654392, at *4 (same).³

CONCLUSION

Service through the Commission should be held valid, and Third-Party Respondents' motion to dismiss should be denied.

³ Indeed, cases cited by the Third-Party Respondents are in accord: in *Sharp*, *Ghazarian*, and *Touchpoint*, the courts did not order dismissal but instead required further service attempts. See *Touchpoint Projection Innovations LLC v. CDNetworks Co., Ltd.*, 2024 WL 4028034 at *5; *Sharp v. Shinhan Bank Co., Ltd.*, 2022 WL 22339345 at *3; and *Ghazarian v. Republic of Turkey*, 2020 WL 3643483 at *2.

Dated: June 23, 2025

Respectfully submitted,

/s/ Rebecca A. Fenneman

JEFFREY/FENNEMAN LAW + STRATEGY, PLLC

Rebecca A. Fenneman

Eric C. Jeffrey

Kaya C. Massey

Nicholas L. Webb

700 12th Street, NW, Suite 700

Washington, DC 20005

Telephone: 202-904-2301

EJeffrey@JeffreyFenneman.com

RFenneman@JeffreyFenneman.com

Kmassey@JeffreyFenneman.com

NWebb@JeffreyFenneman.com

/s/ Gordon L. Lang

NIXON PEABODY LLP

Gordon L. Lang

Brian J. Whittaker

Martha A. Medina

799 9th Street, NW, Suite 500

Washington, DC 20001-5327

Telephone: 202-585-8000

GLang@nixonpeabody.com

BWhittaker@nixonpeabody.com

MMedina@nixonpeabody.com

***Attorneys for Third-Party Complainant,
COSCO Shipping Lines Co., Ltd.***

CERTIFICATE OF SERVICE

I certify that on the 23rd day of June, 2025, a true and correct copy of the foregoing document, **COSCO's Response to Third-Party Respondents' Motion to Dismiss**, was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

ATTORNEYS FOR COMPLAINANT:

HOLLAND & KNIGHT, LLP

Christopher R. Nolan
chris.nolan@hklaw.com

Gerald A. Morrissey, III
gerald.morrissey@hklaw.com

Allison Skopec
Allison.Skopec@hklaw.com

Kristine O. Little
kristine.little@hklaw.com

ATTORNEYS FOR THIRD-PARTY RESPONDENTS, Samsung Electronics Co., Ltd., Samsung SDS Global SCL Asia Pacific PTE LTD, and Samsung Electronics Logitech Company, Limited:

HOHENSTEIN & PARKINSON, LLP

James H. Hohenstein
Jim.hoenestenin@hplawnyc.com

s/ Martha Medina
Martha Medina

EXHIBIT A

From: Jim Hohenstein <jim.hohenstein@hplawnyc.com>
Sent: Monday, May 12, 2025 3:19 PM
To: Rebecca Fenneman
Cc: Eric Jeffrey; Nick Webb; Kaya Massey; Whittaker, Brian; Lang, Gordon; Medina, Martha
Subject: RE: FMC Docket No. 24-16 - SEA v. COSCO v. Samsung et al

[EXTERNAL E-MAIL]

Be Aware of Links and Attachments

Dear Rebecca,

Many thanks: I very much appreciate your courtesies!

Best regards, Jim

Jim Hohenstein
Hohenstein & Parkinson, LLP
385 South End Avenue, #5K
New York, NY 10280
email: jim.hohenstein@hplawnyc.com
telephone: (917) 873-2528
www.hplawnyc.com

From: Rebecca Fenneman <rfenneman@jeffreyfenneman.com>
Sent: Monday, May 12, 2025 15:01
To: Jim Hohenstein <jim.hohenstein@hplawnyc.com>
Cc: Eric Jeffrey <EJeffrey@jeffreyfenneman.com>; Nick Webb <nwebb@jeffreyfenneman.com>; Kaya Massey <Kmassey@jeffreyfenneman.com>; Whittaker, Brian <bwhittaker@nixonpeabody.com>; Lang, Gordon <Glang@nixonpeabody.com>; Martha Medina <mmedina@nixonpeabody.com>
Subject: FMC Docket No. 24-16 - SEA v. COSCO v. Samsung et al

Dear Jim,

I hope this note finds you well.

In case you'll be representing respondents, I'm attaching a courtesy copy of the verified Third-Party Complaint filed by COSCO in the above-captioned proceeding today.

Very best,

Rebecca

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Rebecca A. Fenneman
700 12th Street, NW
Suite 700
Washington, DC 20005
Tel. +1 202 904 2301
Admitted in DC and Maryland



JEFFREY | FENNEMAN

LAW + STRATEGY, PLLC

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